

4. 9:00 AM CASE NUMBER: C23-02709
CASE NAME: MELISSA PALMER VS. DIGGER'S DINER CONCORD, INC.
*HEARING ON MOTION IN RE: QUASH SERVICE OF AMENDED SUMMONS AND SECOND AMENDED COMPLAINT
FILED BY: DIGGER'S DINER CONCORD, INC.
TENTATIVE RULING:

This motion to quash service is expressly unopposed, because it has been **mooted** by subsequent service. The attorneys in this case need to start behaving more professionally.

5. 9:00 AM CASE NUMBER: C24-03183
CASE NAME: NAVYA SHARMA VS. RAVINDER SHARMA
*HEARING ON MINOR'S COMPROMISE RE: DIVA SHARMA
FILED BY:
TENTATIVE RULING:

The proposed minor's compromise is **approved**.

6. 9:00 AM CASE NUMBER: C24-03183
CASE NAME: NAVYA SHARMA VS. RAVINDER SHARMA
*HEARING ON MINOR'S COMPROMISE RE: AYAAN SHARMA
FILED BY:
TENTATIVE RULING:

The proposed minor's compromise is **approved**.

8. 9:00 AM CASE NUMBER: C25-01059
CASE NAME: SHELLEY MYTHEN VS. CARY JARVIS
HEARING ON DEMURRER TO: RE 1ST AMENDED COMPLAINT
FILED BY: JARVIS, CARY
TENTATIVE RULING:

Defendants' demurrer to the First Amended Complaint is **sustained with leave to amend**, and defendants' motion to strike is **granted with leave to amend**.

Defendants shall prepare a proposed order and serve and file a notice of entry of order. Plaintiff shall have 30 days from notice of entry of order to file an amended complaint.

Summary of Allegations and Procedural History

Plaintiff Shelley Mythen filed her original complaint on April 15, 2025, against Ida Alfaro, Donna Willis, Cary Jarvis, Lesli Vandergroen, the Estate of Daisy JoAnn Jarvis, and Does 1 through 10, and a first amended complaint (FAC) on February 2, 2026.

The FAC alleges that on July 18, 2017, Daisy JoAnn Jarvis, who sometimes used the name Ida Alfaro, hired plaintiff to resolve numerous code, building, and government agency violations affecting the real property located at 2750 Penny Lane, Brentwood, California. (FAC ¶ 17.) Plaintiff alleges that Daisy had received multiple notices of violation that had gone unaddressed for approximately seven months, placing the property at imminent risk of forfeiture, and that plaintiff successfully resolved all of the violations by working with Contra Costa County Code Enforcement and other agencies. (FAC ¶¶ 19-20.)

On March 21, 2018, plaintiff moved into a cottage on the property (the Cottage) pursuant to a written month-to-month rental agreement with Daisy at a rate of \$400 per month, and plaintiff alleges she has maintained continuous residence and possession since that time. (FAC ¶ 21.) Plaintiff alleges that she and Daisy developed a close personal relationship, spending approximately ten hours a day together, and that plaintiff continued to perform services for Daisy on an as needed basis. (FAC ¶ 22.)

Plaintiff alleges that on December 1, 2021, in recognition of her services and their friendship, Daisy made an oral gift of the Cottage and surrounding five acres to plaintiff. (FAC ¶ 23.) Plaintiff further alleges that on December 6, 2021, she and Daisy went to the Contra Costa County Recorder's Office to transfer half of the property to plaintiff but were told that the ten-acre parcel could not be split under local regulations. (FAC ¶ 24.) On December 12, 2021, Daisy executed a written lifetime lease agreement (Lifetime Lease) granting plaintiff the right to occupy the cottage and surrounding five acres for the remainder of plaintiff's natural life. (FAC ¶ 25.) The Lifetime Lease provided for monthly payments of \$400 toward rent and property taxes, made plaintiff responsible for electricity only if the monthly solar bill exceeded \$500, and granted plaintiff rights to have guests, make modifications to the residence, perform land improvements, sublease portions of the residence, keep pets, and store vehicles and other personal property on the premises. (FAC ¶ 26.) Plaintiff alleges that after the Lifetime Lease was executed, Daisy erected a metal post on the property to delineate the areas of the parties' respective interests. (FAC ¶ 27.) Plaintiff alleges that from December 2021 until Daisy's death she occupied the cottage and surrounding five acres under the Lifetime Lease and made improvements including new flooring, dual-pane windows, a remodeled bathroom, a second bedroom, and landscaping. (FAC ¶ 28.)

Daisy died on October 29, 2024. (FAC ¶¶ 6, 28.) Plaintiff alleges that following Daisy's death, Cary Jarvis and Lesli Vandergroen took over as managers of the property, claiming to act on behalf of the Brentwood Family Estate Trust. (FAC ¶ 29.) Plaintiff alleges that defendants take the position that the property has been held by the Brentwood Family Estate Trust since 1996, with B.M. Boyer and Floyd Cochran or their successor trustees as trustees, and that Daisy did not have legal authority to grant plaintiff a lifetime lease. (FAC ¶ 30.) Plaintiff also alleges the trust may have expired after twenty to twenty-five years (in 2020), which would have caused the property to revert to Daisy before the Lifetime Lease was executed in 2021. (FAC ¶ 31.)

Plaintiff alleges that since January 2025 defendants have refused to honor the Lifetime Lease and have instead treated plaintiff as a month-to-month tenant under the 2018 rental agreement, sending her numerous unilateral notices changing the terms of her occupancy. (FAC ¶ 32.) These notices are alleged to include limiting plaintiff to one vehicle and charging \$100 per month for each additional vehicle, prohibiting plaintiff from having a support animal after her dog of twenty-one years died in March 2025, restricting plaintiff to one guest for a total of one and a half days per month, requiring

plaintiff's roommate to pay rent directly to defendants, forcing plaintiff to remove a washer and dryer she had purchased for \$3,000, prohibiting plaintiff from maintaining landscaping around the cottage, increasing plaintiff's power bill from approximately \$150 per month to over \$887 per month without justification, forcing plaintiff to remove a hot tub she had purchased for \$2,500, and prohibiting plaintiff from completing planned renovations on which she had spent over \$3,000 in materials. (FAC ¶ 33, subparagraphs (a) through (i).) Plaintiff alleges that as a result she has been forced to sell vehicles and other property below market value at a loss of approximately \$25,000, and has incurred additional storage costs of approximately \$650 per month for items she was forced to remove from the property. (FAC ¶¶ 34-35.) Plaintiff alleges that these actions were designed to force her from the property and constitute unlawful harassment and the use of self-help measures. (FAC ¶ 36.)

Plaintiff alleges that defendants' conduct has caused her to suffer severe emotional distress, including anxiety, depression, sleep disturbances, headaches, muscle tension, fatigue, digestive issues, and increased heart rate and blood pressure. (FAC ¶ 37.) Plaintiff further alleges that she exhibits symptoms of clinical depression, including persistent sadness, loss of interest in daily activities, feelings of hopelessness and worthlessness, fatigue, changes in appetite and weight, social withdrawal, difficulty concentrating, and at times suicidal thoughts, all as a direct result of defendants' conduct since January 1, 2025, and that she is currently treating with medical and mental health providers. (FAC ¶¶ 38-39.) Plaintiff alleges that defendants' acts were done knowingly, willfully, and with malicious intent and conscious disregard of plaintiff's rights, entitling her to punitive damages under Civil Code § 3294. (FAC ¶ 40.)

Based on these allegations, plaintiff asserts six causes of action. The first seeks to quiet title against any adverse claims of defendants. (FAC ¶¶ 41-42.) The second seeks a declaration that plaintiff and defendants each own a one-half interest in the property. (FAC ¶¶ 43-47.) The third seeks physical partition of the ten-acre parcel. (FAC ¶¶ 48-50.) The fourth alleges civil harassment based on a pattern of unlawful demands, notices, and unilateral changes to plaintiff's occupancy rights designed to force her to vacate. (FAC ¶¶ 51-55.) The fifth alleges intentional infliction of emotional distress based on defendants' extreme and outrageous conduct. (FAC ¶¶ 56-60.) The sixth alleges negligent infliction of emotional distress based on defendants' breach of a duty of good faith and fair dealing. (FAC ¶¶ 61-65.)

Plaintiff seeks a judgment that plaintiff is a one-half owner of the property, or in the alternative that she be granted a life estate in the property and surrounding five acres, a declaration that plaintiff and defendants each own a one-half interest in the property, compensatory, general, and special damages according to proof, punitive damages, attorney's fees, and costs of suit. (Prayer, ¶¶ 1-7.)

The FAC attaches six exhibits. Exhibit 1 is the legal description of the property. Exhibit 2 is a January 30, 2018 letter from Daisy commending plaintiff's work in resolving code violations, signed as Project Manager. Exhibit 3 is the handwritten month-to-month rental agreement dated March 21, 2018. Exhibit 4 is a November 19, 2021 letter from Daisy identifying plaintiff as residing at the property, signed by Daisy as both Ida Alfaro, Trustee, and JoAnn Jarvis, Manager. Exhibit 5 is the December 12, 2021 Lifetime Lease Agreement. Exhibit 6 is the Brentwood Family Estate Trust instrument dated November 1, 1995. Exhibits 3, 5, and 6 are key to the issues raised in the demurrer, and are described in greater detail below.

On February 27, 2026, defendants filed the instant demurrer and a motion to strike. Defendants demur to each of the six causes of action on the ground that none states facts sufficient to constitute a cause of action, and separately demur on the ground that the Estate of Daisy JoAnn Jarvis is not a legal entity capable of being sued and that all causes of action against Ida Alfaro and Donna Willis in their individual capacities fail because neither ever held the property individually. The demurrer rests primarily on the contention that Daisy JoAnn Jarvis held no legal or equitable interest in the property at the time of the alleged oral gift or the Lifetime Lease, because record title has been held since 1996 by the trustees of the Brentwood Family Estate Trust. Defendants request judicial notice of a copy of the Trust Transfer Deed recorded November 6, 1996, as document number 96-210226. (Exh. A. to Motion.) Defendants move to strike causes of action numbers four, five, and nine from the FAC caption on the ground that they are not pleaded in the body of the FAC, and to strike the footer phrase "in the alternative a life estate" appearing on pages one through nine on the same ground.

On June 5, 2026, plaintiff filed an opposition and request for leave to amend. Plaintiff concedes the Estate of Daisy JoAnn Jarvis is improperly named and proposes amendment to substitute parties. As to the substantive claims, plaintiff argues she does not seek fee ownership but a lifetime possessory interest under the Lifetime Lease Agreement, which she contends is a sufficient property interest to support quiet title, declaratory relief, and partition. Plaintiff argues the 1996 deed does not resolve whether Daisy had authority to bind the trust to the Lifetime Lease, whether as trust manager, by delegation, by course of dealing, or because the trust may have expired by its own terms before 2021. As to civil harassment and emotional distress, plaintiff argues a genuine dispute exists as to which agreement governs, and that if the Lifetime Lease controls, defendants' enforcement of the 2018 restrictions serves no legitimate purpose and constitutes harassment and outrageous conduct. Plaintiff alternatively requests leave to file a second amended complaint adding factual allegations regarding Daisy's authority, the trust's expiration, and the cumulative effect of defendants' conduct.

On June 11, 2026, defendants filed a reply asserting various new arguments, including that the Brentwood Family Estate Trust defeats plaintiff's claims because the trust is irrevocable, grants contracting authority only to the Board of Trustees, and does not permit a trust manager to grant a lifetime lease. Defendants argue the trust document attached to the FAC controls over contrary allegations. They further argue that the Lifetime Lease, by instructing trustees to honor it after Daisy's death, shows the parties understood Daisy was not a trustee and did not hold title. Defendants assert that plaintiff's proposed amendments regarding trust expiration and Daisy's authority are speculative and unsupported by the FAC or its exhibits, and so the demurrer should be sustained without leave to amend.

Having reviewed the FAC, the attached exhibits, and the parties' arguments, the Court sustains the demurrer with leave to amend, and grants the motion to strike with leave to amend, as detailed below.

Legal Standards

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not

be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.) "Immaterial" or "irrelevant" matters include allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subds. (b)(1)-(3).)

Meet and Confer

Before filing a demurrer or motion to strike, the demurring or moving party shall meet and confer with the party who has filed the pleading and shall file a declaration detailing their meet and confer efforts. (Code Civ. Proc., §§ 430.41, subd. (a); 435.5, subd. (a).)

Defendants' counsel Richard Hobin states that on February 26, 2026, he engaged in a telephonic meet and confer with plaintiff's counsel David M. Livingston, to discuss the pleading deficiencies in plaintiff's first amended complaint, and that the parties were unable to reach a resolution. (Hobin Decl. ¶¶ 5-6.)

Judicial Notice

"Judicial notice is the recognition and acceptance by the court, for use by the trier of fact or by the court, of the existence of a matter of law or fact that is relevant to an issue in the action without requiring formal proof of the matter." (*Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1374.)

Defendants' Request for Judicial Notice of the Trust Transfer Deed recorded November 6, 1996, as Document Number 96-210226 in the Official Records of Contra Costa County, is **granted in part.**

The Court takes judicial notice only of the fact that the Trust Transfer Deed was recorded, the date of its recording and execution, the parties to the transaction reflected in the recorded document, the document's legally operative language, and any legal effect of the document which is clear from its face, namely that as of November 6, 1996, Beryl J. Jarvis and D. Jo Ann Jarvis, as Trustees of the Jarvis Family Trust dated December 30, 1985, conveyed the Real Property to the Trustees, in joint tenancy, of the Brentwood Family Estate Trust, a trust dated November 1, 1995, whose trustees were then identified as B.M. Boyer and Floyd Cochran. (See *Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 265, disapproved on other grounds in *Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 939, fn. 13.)

The Court does not take judicial notice of the state of title as of December 2021, the continued

existence of the Brentwood Family Estate Trust at that time, the identity of any trustees then serving, or whether Daisy JoAnn Jarvis had authority to execute the Lifetime Lease. The Trust Transfer Deed says nothing about any of these matters. Defendants refer to B.M. Boyer and Floyd Cochran “or the successor trustees” but nothing in the deed identifies any successor trustees or speaks to whether the trust was still in existence after 1996.

Misjoinder of Parties

Defendants demur to the FAC on the ground that the Estate of Daisy JoAnn Jarvis is not a legal entity capable of being sued. Citing *Tanner v. Best's Estate* (1940) 40 Cal.App.2d 442, 445, they argue that an estate is neither a natural nor an artificial person but merely a name for the sum total of a decedent's assets and liabilities, and that for a civil action to be prosecuted there must be some existing entity against whom the court's judgment can operate. Defendants argue that an estate has no capacity to sue or be sued or to defend an action so the estate is misjoined.

Plaintiff responds that the proper parties are the individual trustees of the Brentwood Family Estate Trust named in their representative capacities. Plaintiff requests leave to amend to substitute the properly named trustees for the improperly named estate.

The demurrer on misjoinder grounds is **sustained, with leave to amend**.

Claims Against Ida Alfaro and Donna Willis

Defendants demur to all causes of action against Ida Alfaro and Donna Willis on the ground that they are named as individuals when their only connection to the property is their role as trustees of the Brentwood Family Estate Trust. Defendants argue that when property is held in trust the trustee is the real party in interest, and that plaintiff has failed to sue Alfaro and Willis in their representative capacities. Defendants argue there is no factual basis for individual liability against either of them.

The ruling below as to title issues moots this part of the argument at least for now, since the demurrer is being sustained as to all causes of action anyway. If plaintiff amends, however, she should give attention to this nuance.

The First and Second Causes of Action for Quiet Title and Declaratory Relief

Defendants demur to the first cause of action for quiet title and the second cause of action for declaratory relief on the common ground that plaintiff has no cognizable property interest in the property.

As to quiet title, defendants argue that under CCP §§ 760.010 et seq. a plaintiff must allege a present and substantial interest in the property, citing *Lewis v. Superior Court* (1994) 30 Cal.App.4th 1850, 1866, and *Estate of Ford* (2004) 32 Cal.4th 160, 170, and that plaintiff's only interest is a month-to-month tenancy under the 2018 handwritten rental agreement. As to declaratory relief, defendants incorporate their quiet title argument and argue that because plaintiff holds no property interest, there is no actual controversy between the parties within the meaning of CCP § 1060. Both arguments rest on the premise that Daisy JoAnn Jarvis held no legal title or authority to encumber the real

property at the time of the alleged oral gift and the Lifetime Lease, a premise defendants seek to establish through the 1996 Trust Transfer Deed.

As will be discussed, the key to the viability of plaintiff's title or lease claims here is whether the Trust had or had not terminated when Daisy purported to make an oral gift or to enter into a lifetime lease. If we ignore that possibility for the moment, however, it is difficult to see how plaintiff's claims have a leg to stand on. Plaintiff herself attaches the 1996 Trust Transfer Deed and effectively acknowledges that as of 1996, it operated to divest Daisy of ownership of the property. From then on, Daisy was not the property owner; she was only a grantor retaining the right of lifetime occupancy. Indeed, a common purpose of such trust grant arrangements is precisely to preserve the grantors' rights to occupy, while prospectively controlling postmortem disposition and divesting the grantors of the right to give away or sell the property to someone other than the beneficiaries the grantors name in the trust deed.

If the Trust and not Daisy owned the property as of December 2021, then the Court can see no theory (and plaintiff articulates none) under which Daisy would have had the power or right to give part of the property to plaintiff, nor to bind successor owners (the beneficiaries) to a leasehold extending beyond the lessor's own right to occupy the property.

Plaintiff argues in vague terms for how a trustee, or a beneficiary, or a property manager, might have authority to make dispositions of the property. But Daisy was none of these things. She was not a trustee of the trust; she was not designated as a beneficiary of the trust; and other than the custodial role inherent in her actual occupancy of the property, there is nothing granting her a contractual or other role as a "property manager" (such as a professional management company might be) such that she was authorized to act on behalf of the trust, or the beneficiaries, in leasing out or giving away the property in any way that would exceed the duration and scope of her own occupancy.

This is reinforced by a provision in the FAC's own exhibits that defendants point to in their reply as foreclosing plaintiff's claims as a matter of law that Daisy had some unspecified authority to grant a leasehold binding after her death on the property owner (the trust). Article VI, section 6.5 of the trust instrument, FAC Exhibit 6, requires Board majority approval for contracts on behalf of the trust. Defendants argue only the Board acting collectively could have bound the trust to the Lifetime Lease. Less conclusively convincing is the other provision cited in defendants' reply. There is language in the Lifetime Lease, FAC Exhibit 5, in which Daisy directs the appointed trustees to honor the lease upon her death. Defendants argue this shows both parties understood the agreement was not binding on the trust without trustee ratification. If Daisy had full authority, the argument goes, there would have been no need to say anything to the trustees at all. That is a fair point, but it is not the only reasonable reading of the language. A person with authority might still include precautionary language directing successors to honor an agreement, particularly where future disputes are foreseeable. Which reading is correct cannot be decided on demurrer.

That leaves the possibility that the property may have reverted to Daisy upon expiration of the trust. The FAC addresses this only in paragraph 31:

However, Plaintiff has information suggesting that the Brentwood Family Estate Trust may have expired after 20-25 years (potentially in 2020), which would have caused

the Property to revert to Daisy JoAnn Jarvis prior to the execution of the Lifetime Lease. (See a true and correct copy of Brentwood Family Estate Trust dated November 1, 1995 attached and thereby incorporated into this Complaint as Exhibit 6).

The clear reference of this paragraph is to Article 5 of the trust deed:

ARTICLE V.
TERM OF THE TRUST

5.1 This trust shall be established for an initial term of twenty (20) years from the effective date of this Trust. However, the Trustees shall be and hereby are empowered by unanimous decision to terminate it at an earlier date or to renew its operation for additional terms, each not to exceed twenty-five (25) years duration provided, however, that any such extension shall not exceed the maximum term allowed by the rule against perpetuities.

5.2 That as the date for dissolution approaches, if there is no decision to renew the Trust, the Trustees shall proceed timely with the work of termination and dissolution and shall distribute the assets of the trust to the Beneficiaries on a prorata basis according to the units of beneficial interest (shares) which have been issued all and each of them.

If (as appears to be so) plaintiff's theory as to Daisy's authority in 2021 turns on the possibility that the trust terminated in 2016 or 2020, then the hesitant and hypothetical allegations of FAC paragraph 31 are facially inadequate to state such a claim: "information suggesting" that the trust "may have expired". That is not an allegation that in fact this is true, and in fact the trust had expired. "Suggesting" isn't "establishing" or even "alleging"; "may have" isn't "did".

Moreover, even if the trust had expired, it does not readily follow that (as paragraph 31 alleges) that termination "would have caused the Property to revert to Daisy JoAnn Jarvis prior to the execution of the Lifetime Lease". On the contrary, paragraph 5.2 of the trust deed expressly requires that in the event of termination of the trust, the distribution of ownership of the property was to go to *the beneficiaries of the trust* – not the original grantors or present occupants. The beneficiaries of the trust (identified in Article XII) were Cary B. Jarvis, Lesli Van der Groen, and Curtis L. Jarvis. They *did not include* Daisy. Plaintiff articulates no factual or legal theory supporting her speculation that, upon termination of the trust, the property would have reverted to Daisy as grantor. A legal conclusion in paragraph 31, of reversion, cannot withstand demurrer when it is in direct contradiction to the attached document it purports to rely on.

The interesting thing about the present demurrer briefing, however, is that both sides seem to have just forgotten about this possibility of trust termination. Plaintiff's present briefing focuses on a theory as to why Daisy had the right to grant a lease despite not being the property owner (because the trust owned the property). She argues nothing about paragraph 31 or Article V. And for their part, defendants say nothing about whether the trustees did in fact extend the term of the lease, or whether they did in fact act to distribute the ownership to the beneficiaries.

So on the face of the FAC, there is no viable claim alleged for plaintiff's right to claim the property under either an oral gift or a lifetime lease granted by Daisy. The next question is whether there is a prospect plaintiff may be able to amend to cure this problem. The Court does not readily see how that can be done, but does think plaintiff must be given at least one more chance to do so. If she can allege in good faith that the trust did terminate, and also articulate a rationale in which that would result in ownership reversion to the grantor, she may be able to proceed. Alternatively, perhaps she can come up with a sounder theory as to why Daisy, as a non-owner occupant, had the authority to grant a lifetime lease.

The Third Cause of Action for Partition

Defendants contend that a month-to-month tenant lacks standing under CCP § 872.210 to sue for partition, and plaintiff's opposition concedes that this cause of action should be amended or removed. (Opp. p. 11:15-21.) Accordingly, the demurrer to the third cause of action is **sustained with leave to amend**.

The Fourth Cause of Action for Civil Harassment

Defendants demur to the fourth cause of action for civil harassment on the ground that the conduct alleged cannot constitute harassment because each action was taken to enforce the express terms of the 2018 handwritten rental agreement, and therefore served a legitimate purpose within the meaning of CCP § 527.6(b)(3).

The potential viability of this claim turns on whether plaintiff can or can't state a viable claim for the enforceability of her lifetime lease. If she is a rightful tenant, then the actions alleged could well constitute civil harassment in trying to drive her off the property (as well as, potentially, a breach of the lease if the lease is binding on defendants). But if in fact defendants are the proper owner of the property and plaintiff has no right to occupation except on a month-to-month tenancy, then the demands and restrictions alleged on the landlords' part do not seem to exceed their rights as lessors and owners. The viability of this count therefore may turn on whether plaintiff can or can't viably amend counts one and two. The demurrer to this count is therefore **sustained with leave to amend**.

The court questions, however, whether CCP § 527.6 supports a freestanding cause of action for compensatory and punitive damages of the kind plaintiff seeks here. Section 527.6 provides a special proceeding for obtaining a temporary restraining order and injunction prohibiting harassment, with its own notice, hearing, and procedural requirements, including mandatory use of Judicial Council forms, that are distinct from those governing an ordinary unlimited civil action. Plaintiff has not invoked the statute's procedural mechanism or sought injunctive relief. Neither party has addressed this question in their briefing. The court overrules the demurrer on the ground raised and expresses no opinion on the damages question at this time, but the parties may wish to address in future motion practice whether § 527.6 supports the relief plaintiff seeks in this action.

The Fifth Cause of Action for Intentional infliction of Emotional Distress and Sixth Cause of Action for Negligent Infliction of Emotional Distress

Defendants demur to the fifth cause of action for intentional infliction of emotional distress on the

ground that the conduct alleged cannot constitute extreme and outrageous conduct because each action was taken to enforce the express terms of the 2018 handwritten rental agreement. To state a claim for intentional infliction of emotional distress, a plaintiff must allege outrageous conduct by the defendant, the defendant's intention of causing or reckless disregard of the probability of causing emotional distress, the plaintiff's suffering severe or extreme emotional distress, and actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*McClintock v. West* (2013) 219 Cal.App.4th 540, 556.)

It may fairly be debated whether any of the conduct alleged here could really rise to the level of outrageousness required to support an IIED or NIED claim, even if plaintiff does have a leasehold right to occupy under the alleged lifetime lease. But as noted above as to the fourth cause of action, however, there is nothing alleged here that wouldn't fall under the heading of a good-faith assertion of the landlords' rights under a month-to-month arrangement. Accordingly, the demurrer to these counts are likewise **sustained with leave to amend**.

The Court also observes that "negligent" infliction is not a very good fit for the case plaintiff seeks to present. Whether rightful or wrongful, none of the conduct alleged here was "negligent" in the sense of being unintended or accidental.

Motion to Strike

Defendants move to strike four items from the FAC (1) the reference to cause of action number 4, breach of contract, in the caption; (2) the reference to cause of action number 5, breach of the covenant of quiet enjoyment, in the caption; (3) the reference to cause of action number 9, quantum meruit/unjust enrichment, in the caption; and (4) the footer phrase "or in the alternative a life estate" appearing on FAC pages 1 through 9.

Plaintiff has not opposed the motion to strike. Therefore, the motion is **granted with leave to amend**. The caption entries identify causes of action that are not pleaded in the body of the FAC and are thus irrelevant matter within the meaning of CCP § 436. The footer phrase does not correspond to any cause of action pleaded in the body of the FAC and similarly constitutes irrelevant matter.

Leave to Amend

Plaintiff is granted leave to file a second amended complaint within thirty days of notice of entry of this order. Plaintiff has proposed numerous amendments across multiple causes of action. Plaintiff may amend any cause of action addressed in this ruling and correct the party designation defects identified in the demurrer.

9. 9:00 AM CASE NUMBER: C25-02730
CASE NAME: TADEUSZ WYRZYKOWSKI VS. CSW CONSTRUCTION GROUP
*HEARING ON MOTION IN RE: HALT, SEASE & DESIST CRIMES AGAINST JUSTICE
FILED BY:
TENTATIVE RULING:

It is no easy task to try to make out what this plaintiff thinks his case is about. It appears to arise from